

Court No. - 37

Case :- WRIT - C No. - 54088 of 2003

Petitioner :- Chandrika Prasad Pandey

Respondent :- State Of U.P. Thru' Secy. Energy & Others

Petitioner Counsel :- Gyanendra Kumar Singh

Respondent Counsel :- C.S.C., Vinod Misra, W H Khan

Hon'ble Sunil Ambwani, J.

Hon'ble Aditya Nath Mittal, J.

Heard learned counsel for the petitioner. No one has put in appearance on behalf of the respondents nor any counter affidavit has been filed.

This writ petition has been filed for restoration of the electric supply to connection no. 4051/5433 of the petitioner in Village Naudhiya, Tehsil Sirathu, District Kaushambi.

It is submitted by learned counsel for the petitioner that the petitioner was regularly paying his bills for the consumption with 7.5 H.P. engine. The Executive Engineer instead of sending the bills for 7.5 H.P., started billing the petitioner at 10 H.P., on which the petitioner filed a Consumer Complaint No.160 of 2001 in the District Consumer Forum, Kaushambi. The consumer complaint was decided ex-parte on 22.01.2002 with direction to allow the petitioner to operate his pump set, and to send him bills calculated on the basis of 7.5 H.P. connection. It is alleged that no appeal was filed against the order of Consumer Forum and it has become final.

It is submitted by learned counsel for the petitioner that even after the order of the Consumer Forum, which was served upon the respondents, an undated and unsigned reminder has been sent to him to pay all the pending bills, failing which his connection will be disconnected. Neither the electric connection was restored nor

his bills were corrected in pursuance of the order of the Consumer Forum dated 22.01.2002.

Since no reply has been filed, we proceed on the basis that the averments made in the writ petition are correct. Consequently, we dispose of the writ petition with directions that the electric connection of the petitioner for 7.5 H.P. shall be reconnected within a month from the date of production of the certified copy of this order before the Executive Engineer (Distribution), Power Corporation, Electricity Department, District Kaushambi. It will be open to the department to serve upon the petitioner the pending bills, if any. In case the petitioner disputes the pending bills or the arrears, if any, he will have a right to file objection under the U.P. Electricity Supply Code, 2005, which will be decided by the Executive Engineer, in accordance with law, and in compliance with the order of the District Consumer Forum, Kaushambi dated 22.01.2002

Order Date :- 24.4.2012

Kpy